

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 24-24

S.P.F. LOGISTICS, INC.,

COMPLAINANT,

v.

HAPAG-LLOYD AG,

RESPONDENTS.

JOINT REPORT OF PARTIES

Pursuant to Federal Rule of Civil Procedure 26(f) and FMC Rules § 502.141(b), (h), the parties have conferred with attorney Theodore H. Adkinson representing S.P.F. Logistics, Inc., and attorney Wayne R. Rohde and Rachel Schwartz representing Hapag-Lloyd AG (“Hapag”). SCHEDULING AND DISCOVERY PLANS WERE DISCUSSED AND AGREED TO AS FOLLOWS:

I. The status of discovery

1. The parties exchanged their initial discovery requests on July 3, 2025, and completed the production of documents, and any written responses, and objections in response to initial discovery requests on August 11, 2025.

2. Neither party served a motion to compel discovery.

3. The deadline for the completion of non-expert depositions will be September 30, 2025.

6. Discovery shall be completed by October 20, 2025 (no later than 150 days after the service of the respondent's answer to the complaint). FMC R. §502.141(g). Any written interrogatories or request for production served after the date of the Scheduling and Discovery Order shall be served by a date that allows the served parties the full 30 days as provided by the Federal Rules of Civil Procedure in which to answer or produce by the discovery cut-off date, unless otherwise agreed by the Parties or ordered by the Presiding Officer.

II. Expert witnesses and rebuttal expert witnesses

7. S.P.F. Logistics anticipates using one expert witnesses and rebuttal expert witnesses. Hapag will not have an affirmative expert, but may use a rebuttal expert witness if S.P.F. Logistics uses an expert witness.

8. The parties will exchange initial expert reports, if any, on September 19, 2025. Rebuttal expert reports, if any, will be due October 15, 2025.

III. Status of settlement negotiations

9. The parties conferred with CADRS pursuant to 46 C.F.R. § 502.64(a)(1), (2) on June 18, 2025.

10. The parties have engaged and continue to engage in settlement discussions. The most recent proposal was made by on September 12. That proposal is under consideration and a response thereto will be forthcoming in the near future..

IV. Proposed schedule for completing discovery and briefing

EVENT	DEADLINE
Expert disclosures and expert report	September 19, 2025
Depositions of non-experts	September 30, 2025
Rebuttal expert reports	October 15, 2025
Depositions of experts	October 20, 2025
Completion of discovery	October 20, 2025
Deadline for all dispositive motions	November 4, 2025
Complainant's opening brief (Complainant's opening brief, including exhibits and proposed findings of fact)	December 4, 2025 (if no dispositive motion filed) or thirty (30) days after the date of the ruling on the dispositive motion(s).
Respondent's reply brief (including exhibits, proposed findings of fact and responses to Complainant's proposed findings of fact),	January 9, 2025 (if no dispositive motion filed) or thirty (30) days after the filing of Complainant's opening brief, whichever is later.
Complainant's response to reply brief	January 26, 2025 (if no dispositive motion filed) or fifteen (15) days after the

	submission of Respondent's reply brief, whichever is later.
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Dated: September 16, 2025

Respectfully submitted,

By: /s/ Theodore H. Adkinson
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Dated: September 16, 2025

Respectfully submitted,

By: /s/ Wayne R. Rohde
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CERTIFICATE OF SERVICE

I certify that on the 16th day of September 2025, I served the above **JOINT REPORT OF PARTIES** to the parties listed below by electronic mail.

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